

Hearing of the President of the Authority for the Protection of Personal Data, Prof. Pasquale Stanzione
- Hearings on Bill No. 808 (Amendments to the Penal Code, the Code of Criminal Procedure, the Judicial System, and the Military Code)
Senate of the Republic - 2nd Justice Commission
(September 6, 2023)
- THE VIDEO OF THE HEARING

I thank the Commission for seeking to acquire the viewpoint of the Authority regarding a measure that concerns data protection, particularly due to provisions introduced by Article 2, concerning interceptions and the guarantee of information. The Authority expressed an opinion on the text, favorable with recommendations, on August 3, which I will reiterate, albeit with the necessary updates following the introduction of regulations on the centralization of data centers for interceptions, as mandated by Article 2 of Decree Law No. 105 of 2023.

It should be noted preliminarily that the bill introduces significant measures to strengthen the guarantees of confidentiality of conversations and discussions subject to interception; in particular, those involving third parties not part of the legal proceedings.

Firstly, the prohibition on publication (currently limited to intercepted materials deemed unusable or irrelevant) is extended to captured content that has not been reproduced by the judge in the reasoning of a ruling or used during the trial. Consequently, a corresponding prohibition on the release of copies requested by parties other than the parties and their defenders is introduced, in the absence of the need to utilize the results of the interceptions in another specifically indicated proceeding.

In other words, the possibility of circulation of captured content is limited to only those actually used in the judicial process, in the reasoning of a judicial act, or in the trial context.

Secondly, expressions concerning data relating to subjects other than the parties are included in the category of expressions to be omitted from transcripts, thereby limiting the (already) intra-procedural circulation of third-party data.

Thus, the two main proposed amendments synergistically contribute to strengthening the confidentiality guarantees for third parties and, on the other hand, to circumscribing the circulation scope (both intra- and extra-procedural) of captured content, by virtue of a balance with the right to (and to) information, the definition of which is reserved for the discretion of the legislator.

In this perspective, however, it may be appropriate to consider introducing some specific amendments to other procedural provisions (regarding the archiving of interceptions and the annulment of secrecy), useful for ensuring better coordination with the proposed innovations.

In this sense, in Article 89-bis, paragraph 2, first sentence, transitional provisions of the Code of Criminal Procedure, the following words could be added at the end: "or, in any case, personal data relating to subjects other than the parties." This amendment is necessary to align the types of interceptions to be included in the digital archive with those relating to interceptions subject to exclusion (Article 268, paragraph 6, Code of Criminal Procedure).

On the other hand, the regulation of secrecy under Article 269, paragraph 1, second sentence, should be coordinated with the innovations introduced, particularly by anchoring its annulment to the inclusion in the file not already of the public prosecutor (Article 373, paragraph 5) but of the judge (Article 431), referring it, moreover, not to the content used during the preliminary investigations, but to those used by the public prosecutor or the judge in their respective rulings.

These amendments would contribute to achieving a more organic coordination of the various procedural provisions considered with the innovations, appropriately introduced by the bill, regarding the limitation of the circulation regime of captured content.

As for more substantial indications, one could, in the first place, further circumscribe the risk of undue circulation of data subject to exclusion - because unusable or irrelevant - balancing, however, this interest with the need not to completely disperse, at least during the course of the trial in its various

stages, possible sources of evidence initially deemed irrelevant.

To this end, some measures could be adopted to make effective the temporal scanning currently provided for the procedure for the destruction of material stored in the digital archive, facilitating the identification of content to be eliminated.

In this sense, it could be particularly considered to order in the ruling, following the model of Article 262 of the Code of Criminal Procedure, the provisional destruction - to be carried out only after the ruling has become unassailable: Article 269, paragraph 2, Code of Criminal Procedure - of the minutes and recordings stored in the digital archive, indicating the RIT number (telephone interception register). This measure could facilitate the destruction procedure without altering its temporal scanning, thus ensuring both individual confidentiality and the need not to disperse, until the final judgment, sources of evidence that may be relevant at a later time.

This would, moreover, impose the guarantee of the actual security of the conditions for the storage of the material contained in the digital archive. The particular sensitivity of the data stored there, exceeding current investigative needs, imposes...

specifically, the adoption of adequate security rules that comply with those indicated by the Guarantor, first with provision no. 356 of July 18, 2013, and then in the opinion on the Ministerial Decree of April 20, 2018. The real innovativeness of the reform (as, indeed, of the previous ones that provided for the devolvement to the archive of unacquired interceptions) depends, in fact, largely on how the actual impermeability of the archive will be guaranteed, through security measures regarding which the Guarantor may offer, from a primarily collaborative perspective, its assessment.

In this context, it is also desirable to consolidate the path of "technical and organizational rationalization of interception systems, with the final objective of establishing the five national data centers," as referred to in the Ministerial Decree of October 6, 2022. The Law Decree 105 (on which the implementing decrees will be pronounced by the Guarantor), in providing for the establishment of inter-district digital infrastructures and the migration of data from individual Prosecutor's Offices, certainly moves in the right direction.

On the other hand, in order to ensure the effective respect of the prohibition of intra-procedural circulation of data intercepted from third parties that are deemed irrelevant, the prerequisites for the enforceability of the special protection granted, even to third parties and in innovative forms, by Article 14 of Legislative Decree 51 of 2018 could be facilitated. This provision indeed legitimizes "anyone with an interest" (not just the procedural parties, as in Article 269, paragraph 2, of the Criminal Procedure Code) to request the judge, provided the prerequisites exist, the rectification, deletion, or limitation of data concerning them, even during the criminal proceedings. This is a provision with considerable potential that, when combined with the destruction procedure referred to in Article 269, could significantly strengthen the guarantees of confidentiality, especially for third parties whose conversations have been indirectly intercepted.

The initiation of such a procedure could also ensure the removal of third-party data that are erroneously present in the procedural documents, in the absence of the prerequisites now provided. Naturally, the effectiveness of the provision would be strengthened with a system similar to that provided for by Article 10 of AS 1512, in the XV legislature, to prevent the subject from learning about the existence, in procedural documents, of their own conversations directly from the press, when the ablative intervention would already be too late.

To ensure the effectiveness of the remedial protection without, however, burdening the public prosecutor with an excessive informational burden as might appear to be the case with that hypothesized by AS 1512, it could also be legitimized for the third party, upon confirmation of the existence of interceptions involving them, to listen to them for the purpose of activating the destruction procedure referred to in Article 269, paragraph 2, of the Criminal Procedure Code, second sentence, or exercising their rights to limitation or, possibly, rectification of the data pursuant to Article 14 of Legislative Decree 51 of 2018.

In this way, through the procedural connection between the right referred to in Article 14 of Legislative Decree 51, the institution of destruction referred to in Article 269 of the Criminal Procedure Code, and the proposed limits to the intra-procedural circulation of third-party data, a truly effective protection of confidentiality could be granted.

The parliamentary examination of the bill could, moreover, represent an opportunity to introduce greater guarantees regarding interceptions through intercepting devices. The intrusive potential of such tools imposes adequate guarantees to prevent their degeneration into means of excessively broad surveillance or, conversely, into factors that exponentially multiply the vulnerabilities of the evidentiary corpus, making it permeable if allocated in insecure servers or, in any case, relocated outside national borders.

The necessity for such guarantees seems, moreover, corroborated by certain events (consider the Exodus case of 2019), relating to particular methods of carrying out interceptions through malware, by the companies commissioned pursuant to Article 348, paragraph four, of the Criminal Procedure Code. They highlight the risks associated with the use of computer interceptors with the companies commissioned resorting to infiltration techniques lacking the necessary selectivity.

Specifically, reference is made to the use, for interception purposes, of software connected to apps, which are therefore not directly injected into the sole device of the suspect, but placed on platforms accessible to anyone. If made available on the market, even if only by mistake in the absence of the necessary filters to limit their acquisition by third parties - as seems to have occurred in the cases known to the news - these spy apps would indeed risk transforming into dangerous tools of mass surveillance.

The use of these two types of systems (apps or software that are not directly injected into the host device but downloaded from platforms freely accessible to all) could, therefore, be subject to a specific prohibition.

In the alternative, it could be provided that the actual installation in the portable electronic device and the consequent acquisition functionalities of the computer interceptor can only be fully realized after verifying the unique association between the device affected by the software and that considered in the authorizing judicial provision.

In any case, also due to the rapid evolution of the characteristics and functionalities of the software available for interception purposes,

It would be appropriate to prohibit the use of interceptors capable of altering the content of the host device and erasing traces of the operations carried out, as noted in the context of the exploratory investigation conducted by this Commission. For the correct reconstruction of evidence, the guarantee of the right to defense, as well as privacy, it is indeed essential to have software capable of reconstructing, in detail, every activity carried out on the host system and on the data present therein, without altering its content, thereby valuing the need for an analytical record of the operations performed.

In this sense, the requirement, as per Article 89, paragraph 4, of the implementing provisions of the Code of Criminal Procedure, regarding the “reliability, security, and effectiveness” of software that can be used for interceptive purposes (which must indeed be limited to the only authorized operations), should be explicitly stated, thus effectively ensuring the completeness of the chain of custody of digital evidence. This need is all the more essential concerning investigative operations, such as those under examination, which have a high degree of outsourcing and, as such, present greater vulnerabilities, being largely entrusted to private individuals who must, therefore, be adequately held accountable for the security obligations to be ensured.

Furthermore, it will be appropriate to clarify, in Article 89, paragraph 2, of the implementing provisions of the Code of Criminal Procedure, the consequences of resorting to software programs that do not comply with the security requirements set forth by the Ministerial Decree.

While the introduction of the aforementioned safeguards is advisable, the particular invasiveness of

spyware certainly merits reflection by the legislator regarding the actual scope of application of this means of evidence gathering. The provision of the necessity to indicate, in the authorization decree, the reasons for the indispensability of using the trojan (introduced by Decree-Law No. 132 of 2021, converted, with amendments, by Law No. 178 of 2021) and, for crimes other than those under the jurisdiction of the District Prosecutors or the more serious offenses against public administration, the locations and times of activation of the microphone is certainly positive. In this way, at least in part, the potential ubiquity of the means and the difficult predetermination of the development of the interceptions can be circumscribed.

However, should the legislator consider rethinking the admissibility perimeter of this type of interception, useful insights can be derived from a strong reading of the proportionality scrutiny between investigative needs and privacy (in the declination of the inviolability of digital life) offered, regarding trojans as well, by the German Constitutional Court, with rulings of February 27, 2008 (BVerfG, NJW 2008, 822, on online searches) and April 20, 2016 (BVerfG, I, April 20, 2016 - 1 BVR 966/09, 1 BVR 1140/09). Particularly relevant is the consideration of how the principle of proportionality imposes a modulation of guarantees that takes into account the potential of the investigative means concretely used and its capacity to impact the intangible core of the individual's private life.

Thank you.